

23VECV02767 23VECV02767

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-10

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Case Number: 23VECV02767 Hearing Date: July 10, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF

LOS ANGELES - NORTHWEST DISTRICT

SOPHIA OLGA

MASLAKOVA, an individual,

Plaintiff,

vs.

SPI COLLINS COURT LLC, a limited

liability company; WARNER VILLA CO., a business organization, form unknown;

FPI MANAGEMENT, INC., a corporation; CHRISTIAN BENSON, an individual; HERTZ

VEHICLES LLC, a limited liability company; LYFT, INC., a corporation; WILMA

Z. GOLDMAN, an individual; and DOES 1-100, inclusive,

Defendants.

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CASE NO: 23VECV02767

[TENTATIVE] RULING RE: PLAINTIFF'S
MOTION TO TAX COSTS FROM DEFENDANT WILMA Z. GOLDMAN'S COSTS MEMORANDUM

Dept. U

8:30 a.m.

July 10, 2026

I.

BACKGROUND

This case is a personal injury action arising from two separate incidents: a slip and fall at an apartment complex on July 31, 2022, and a subsequent motor vehicle accident in which Plaintiff was a Lyft passenger on April 7, 2023.

On June 26, 2023, Plaintiff Sophia Olga Maslakova filed her complaint against Defendants SPI Collins Court, LLC ("SPI"); Warner Villa Co. ("Warner"); FPI Management, Inc. ("FPI"); Christian Benson ("Benson"); Hertz Vehicles LLC ("Hertz"); Lyft, Inc. ("Lyft"); and Wilma Z. Goldman ("Goldman"),

alleging: (1) general negligence against SPI, Warner, and FPI; (2) premises liability against SPI, Warner, and FPI; (3) motor vehicle negligence against Benson, Hertz, Lyft, and Goldman; and (4) general negligence against Benson, Hertz, Lyft, and Goldman.

On December 1, 2023, Plaintiff filed a form amendment, naming 5807 Topanga LLC ("Topanga") as DOE #1 in her complaint.

On December 26, 2023, Cross-Complainant Benson filed his cross-complaint against Cross-Defendant Goldman, seeking/alleging: (1) total equitable indemnity; and (2) comparative indemnity and contribution.

On June 3, 2024, Cross-Complainant Hertz filed its cross-complaint against Cross-Defendants FPI, Goldman, and Topanga, seeking/alleging: (1) indemnification; (2) apportionment of fault; and (3) declaratory relief.

On February 5, 2025, Plaintiff dismissed Hertz as a defendant from the complaint.

On August 8, 2025, the Court granted Plaintiff's attorneys' motion to be relieved as counsel. As of that date, Plaintiff has been proceeding as a self-represented litigant.[1]

On November 24, 2025, Benson filed his form amendments naming FPI as ROE #1 and Topanga as ROE #2 in his cross-complaint.

On January 12, 2026, the Court granted Benson leave to file a first amended cross-complaint, after which Benson filed his first amended cross-complaint (the "FACC") against Goldman, FPI, and Topanga, seeking/alleging: (1) total equitable indemnity; and (2) comparative indemnity and contribution.

On January 13, 2026, the Court conducted a mandatory settlement conference off the record.

The case did not settle.

On January 30, 2026, Goldman filed her answer to Benson's

FACC.

On March 9, 2026, the Court denied FPI and Topanga's motion to enforce a settlement previously entered with Plaintiff.

On April 23, 2026, the Court held a Final Status Conference and granted Lyft's motion to bifurcate the trial in this matter.

On April 27, 2026, a jury trial commenced.

On May 6, 2026, the jury returned a verdict, and the Court entered judgment against FPI and Topanga in favor of Plaintiff in the total amount of \$96,250.00. The Court also entered judgment against Plaintiff in favor of Benson, Goldman, and Lyft. The judgment notes that Defendants may seek their recovery of costs from Plaintiff.

On May 19, 2026, Goldman filed her costs memorandum, seeking \$33,449.97 in litigation costs.

On May 26, 2026, Plaintiff filed her costs memorandum, seeking \$13,792.87 in litigation costs.

On May 27, 2026, Lyft filed its costs memorandum, seeking \$27,329.89 in litigation costs.

Also on May 27, 2026, Benson filed his costs memorandum, seeking \$84,723.61 in litigation costs.

Also on May 27, 2026, FPI and Topanga filed their costs memorandum, seeking \$28,694.40 in litigation costs.

On June 1, 2026, Plaintiff filed her motion to tax Goldman's costs.

On June 3, 2026, Plaintiff filed her motion to tax Lyft and Benson's costs.

On June 5,

2026, Plaintiff filed her motion to tax FPI and Topanga's costs.[2]

On June

18, 2026, Judge Anthony Mohr granted an ex parte application to stay enforcement of the judgment pending a resolution of issues related to litigation costs.

On June

22, 2026, Goldman filed her opposition brief as to Plaintiff's motion to tax costs.

On July 2,

2026, Plaintiff filed a supplemental costs memorandum, seeking an additional \$8,571.30 in litigation costs.

As of 5:00 P.M. on July 8, 2026, Plaintiff had filed no reply brief as to the motion to tax Goldman's costs.

II.

LEGAL STANDARD

A prevailing party to any

action or proceeding is entitled to recover its costs for suit as a matter of

right.¿ Code Civ. Proc., § 1032 (b).¿ By submitting a

verified memorandum of costs, the prevailing party has provided prima facie evidence

of the proper costs of suit.¿ Adams v. Ford Motor Co. (2011)

199 Cal.App.4th 1475, 1486-1487 (Adams); Code Civ. Proc., § 1033.5

(c)(2).

III.

DISCUSSION

Plaintiff moves to tax costs claimed in Goldman's costs

memorandum. The motion is denied.

a.

Plaintiff's

arguments that Goldman's 998 offer(s) was/were defective due to invalid service or insufficiently specific terms are without merit.

Here, Plaintiff disputes that Goldman is entitled to recover her costs because Goldman's 998 offer was "transmitted solely by electronic mail despite Plaintiff's prior communications regarding notice concerns." (Motion, p. 2:5-6.) Plaintiff complains that Goldman's electronic communication did not plainly identify itself as a 998 offer in the subject line. Plaintiff says she does not recall receiving the 998 offer and was not aware of its existence until trial had already begun.

Plaintiff complains that the "998 offer did not attach formal release documentation or define important practical settlement mechanics, including but not limited to: 1. release scope, 2. payment timing, 3. payment protections, 4. additional released entities, 5. future documentation requirements, 6. and other material settlement obligations." (Motion, p. 3:12-18.)

Goldman explains that she served two (2) different 998 offers on Plaintiff, the first of which was served on Plaintiff's then-counsel of record on April 25, 2024. (Paz decl., ¶ 3.) Plaintiff's motion fails to address Goldman's first 998 offer, which offered to settle with Plaintiff for a total of \$7,500.00. Because the jury returned a verdict in favor of Goldman and against Plaintiff, Plaintiff received a worse result at trial. Goldman is thus allowed to recover her costs after service of the first 998 offer on Plaintiff's then-counsel.

As to electronic service of Goldman's second 998 offer, Goldman presents evidence that Plaintiff previously provided an email address for service when she became self-represented, thus consenting to electronic service. While Plaintiff's email consenting to electronic service states that she requests to be served "BOTH by email and mail" (Opposition, Exh. 5), Plaintiff cites no authority allowing for a party to demand two methods of service. Goldman's electronic service of the second 998 offer on Plaintiff was thus valid.

The same logic applies to Plaintiff's complaint that she never received mailed service of Goldman's costs memorandum. Because Plaintiff consented to electronic service, Goldman's electronic service of the costs memorandum was proper. In short, service of both Goldman's first and second 998 offers and service of Goldman's costs memorandum were valid.

As to Plaintiff's complaints regarding the substance of the 998 offer, a 998 offer for a dismissal with prejudice is valid without needing to include a draft settlement with specific terms. See *Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 470 ("an offer that provides for the plaintiff's dismissal of the action with prejudice is a valid form of offer within section 998"). Here, Goldman's first 998 offer to Plaintiff required that Plaintiff dismiss her case against Goldman with prejudice in exchange for \$7,500.00. Goldman was not required to, as Plaintiff suggests, attach a formal release or define "settlement mechanics" for the 998 offer to be valid.

In sum, Plaintiff's arguments that Goldman's 998 offers were defective due to invalid service or insufficiently specific terms are without merit.

b.

Goldman

sufficiently itemizes and substantiates its expenses, and those expenses were reasonably necessary to the conduct of litigation.

Goldman seeks the following \$33,449.97 in litigation costs:

\$435.00 for filing and motion fees; \$640.91 for jury fees; \$2,189.10 for deposition costs; \$10,894.49 for witness fees; \$12,351.50 for court reporter fees; \$849.84 for models, enlargements, and photocopies of exhibits; and \$6,089.13 for "other" fees, identified as trial tech expenses.

Plaintiff objects to Goldman's costs memorandum on grounds that: Goldman has not substantiated her expenses and/or the expenses are vague/unsupported, Goldman's expert witness fees are excessive, Goldman's costs were not reasonably necessary to the conduct of litigation, Goldman's costs are duplicative and/or are not related to Goldman herself, and Goldman's costs were incurred outside the period covered by the 998 offer.

As to Plaintiff's objection that Goldman's costs memorandum "failed to adequately itemize and substantiate claimed expenses" (Motion, p. 4:14), the Court disagrees. Goldman's costs memorandum sufficiently itemizes each of the expenses claimed. Goldman's opposition brief includes invoices and receipts to prove that said expenses were actually paid. For purposes of ruling on Plaintiff's motion to tax costs, this is sufficient for Goldman to establish what her expenses

were. See Adams, supra,
199 Cal.App.4th at pp. 1486-1487 (by submitting verified memorandum of costs,
prevailing party has provided prima facie evidence of proper costs of suit).

As to reasonableness of Goldman's claimed expert costs,
recoverable expert costs under Code of Civil Procedure section 998 (c)(1) include
costs "actually incurred and reasonably necessary in either, or both,
preparation for trial or arbitration, or during trial or arbitration, of the
case by the defendant." Here, Goldman
claims \$10,894.49 for services provided by her retained expert, Swathi Kode,
Ph.D. Goldman says Dr. Kode assisted her
in evaluating Plaintiff's claims, preparing for trial, and putting on a defense
at trial.

Dr. Kode spent time reviewing records, inspecting vehicles,
performing accident reconstruction and biomechanical research and analysis, and
sharing her findings with Goldman's counsel.

Dr. Kode also testified at trial.

Goldman's counsel attests that \$10,894.49 was actually incurred for Dr.

Kode's services after service of Goldman's first 998 offer. Goldman's counsel attests that that amount
has actually been paid out by Goldman.

(Paz decl., ¶ 5, Exh. 4.) The

Court agrees with Goldman that Dr. Kode's fees are reasonable. Because Dr. Kode's expert fees were actually
incurred, the Court will not strike them from Goldman's costs memorandum.

As to court reporter costs, the court reporter at trial in
this matter was a certified shorthand reporter hired by the parties and
appointed as an official court reporter pro tempore. (Paz decl., ¶ 9, Exh. 8.) The fees for a certified shorthand reporter
appointed as an official court reporter pro tempore are recoverable court
reporter costs. See Gov. Code, § 68086

(d)(2) ("fees and charges of the certified shorthand reporter shall be
recoverable as taxable costs by the prevailing party"). Goldman seeks recovery of the fees she
actually paid the court reporter for her services at trial. (Paz decl., ¶ 9, Exh. 9.) Because court reporter fees are recoverable,
they will not be taxed or stricken.

As to exhibit costs, costs for "[m]odels, the enlargements
of exhibits and photocopies of exhibits, and the electronic presentation of
exhibits, including costs of rental equipment and electronic formatting, may be
allowed if they were reasonably helpful to aid the trier of fact." Code Civ. Proc., § 1033.5 (a)(13). Here, Goldman claims
\$849.84 that she paid

for her share for the costs of photocopying exhibits and putting together the exhibit binders used at trial. (Paz decl., ¶ 8, Exh. 7.) Such exhibits were reasonably necessary for Goldman to put on a complete defense to Plaintiff's claims at trial. Given that the jury returned a defense verdict for Goldman, Goldman is allowed to recover her fees to produce said exhibits.

Plaintiff disputes Goldman's claim for \$6,089.13 in "other" fees that were paid to Magna Trialgraphix/Cogent Edge to assist with the preparation and presentation of evidence at trial. (Paz decl., ¶ 10, Exh. 10.) Costs not expressly allowed under Code of Civil Procedure section 1033.5 (a) may still be awarded in the Court's discretion if they were actually incurred, reasonable in amount, and reasonably necessary to the conduct of the litigation.

See Code Civ. Proc., § 1033.5 (c)(4).

Such trial court discretion extends to costs for "a technician to monitor [] equipment and quickly resolve any glitches" because such a service "has become commonplace, if not expected by jurors."

Green v. County of Riverside (2015) 238 Cal.App.4th 1363, 1374.

The Court agrees with Goldman that a trial technology technician was reasonably necessary to the conduct of litigation in this case given the complexity of the trial due to the multiple incidents involved. The fee charged by the trial technology technician service provider appears to have been reasonable. As such, the Court exercises its discretion to allow Goldman to recover fees paid to Magna Trialgraphix/Cogent Edge for trial technology services in this case. However, the Court further exercises its discretion as this category of costs and reduces the recoverable costs to about one-half of the requested cost.

Finally, Plaintiff complains that Goldman fails to explain how costs shared among the several defendants "were calculated, who paid the original invoices, whether the allocations were reasonable, or whether the same expenses are being claimed by other defendants." (Motion, p. 9:20-22.) The Court disagrees with Plaintiff that Goldman failed in this regard. Goldman's attorney's declaration specifies where certain costs were shared among the several defendants in this case (see Paz decl., ¶¶ 8-10), and Goldman's costs memorandum identifies what the total amount of that portion paid by Goldman was. This is sufficient. See Adams, supra, 199 Cal.App.4th at pp. 1486-1487. Goldman does not need to specify who paid the original invoice to establish that

Goldman is entitled to her share of the costs paid.

IV.

CONCLUSION

Plaintiff's

motion to tax costs from Defendant Wilma Z. Goldman's costs memorandum is DENIED in part, with the Court exercising its discretion to tax \$3.045 in requested costs.

Defendant

Wilma Z. Goldman is ORDERED to give notice.

DATED: July 10, 2026

Lee

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Judge

of the Superior Court

[1] See *Harding v. Collazo* (1986)

177 Cal.App.3d 1044, 1056 (self-represented litigants held to same standards applied to licensed attorneys); see also *Monastero v. Los Angeles Transit Co.* (1955) 131 Cal.App.2d 156, 160-161 ("litigant is permitted to present his own case, but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts").

[2] The Court notes

that because Plaintiff appears to have paid just one (1) reservation fee, there is only one motion to tax costs set for hearing despite Plaintiff having filed three (3) separate motions. The Court elects to rule on only the Goldman motion at the hearing on July 10, 2026. The Court will rule on the other two (2) motions (the Lyft/Benson motion and the FPI/Topanga motion) on later dates, which the Court will set. The Court will not accept additional briefing as to those outstanding motions which are already fully briefed. Plaintiff will

not need to pay another reservation fee.